

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 13, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dr. Mark Rinne and Dicky Shanor. Absent: Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, and pursuant to support received by Mr. Case and Mr. Johnson, Agenda Item #21(g) (Memorandum of Understanding between the City and Downtown Development Authority) was removed from the Consent Agenda. In addition, Mr. Laybourn requested to remove agenda item #21(g) from the Council agenda in its entirety. Upon inquiry by Mayor Orr and there being no objections voiced by City Council members, the item was removed from the agenda. Remaining Consent Agenda items were approved. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on October 23, 2017. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Cook. Inquiry was made regarding vouchers payable to: DAPCPA Pope & Jackson, Inc. (contractual treasury services and exit interview); Evergreen Lawn & Tree Care, Inc. (tree removals); IMS Infrastructure Management Services (pavement data conversion to new software system); JM Rodent Control (rodent control services); Dennis Flynn (rent payment for new office location for the Metropolitan Planning Organization) and Merritt Plumbing and Heating, Inc. (winter removal of Greenway tunnel pump). Providing information available on the vouchers of interest were: Mayor Orr; Ron Downey, City Treasurer, and Teresa Moore, Director, Community Recreation and Events. Upon inquiry, Chief Greg Hoggatt, Fire and Rescue Department, provided information on the City’s Fire Honor Guard. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting "no".

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, a portion of Section 9, all of the W½ Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located to the southeast of the intersection of E. College Drive and Avenue C). Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Mr. Roybal moved to amend by substitute ordinance dated October 30, 2017 and revised annexation map, seconded by Mr. Cook. Entitlement of the proposed substitute ordinance is as follows: An

Ordinance annexing to the City of Cheyenne, Wyoming, a portion of Sections 8 and 9, all of the W½ Section 14, a portion of the E½ E½ of Section 17, and all of Sections 15, 16 and 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located to the southeast of the intersection of E. College Drive and Avenue C). Motion to amend carried. Voting "yes" – all members of the governing body present. Mr. Roybal moved to postpone to November 27, 2017 at the request of the developer, seconded by Mr. Cook. Motion to postpone carried. Voting "yes" – all members of the governing body present.

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MR Medium-Density Residential to CB Community Business for Lot 4, Block 2, Moore-Haven Heights Addition, 3rd Filing, Cheyenne, Wyoming (located south of 8th Avenue west of Central Avenue). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting "yes" – all members of the governing body present. (#4207)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from HR High-Density Residential to CB Community Business for Lot 3, Lot 4, and the W 22' of Lot 2, Block 745, Stanfield Addition; and Lots 1, 2, & 5, Block 1, Stanfield Addition, 3rd Filing, Cheyenne, Wyoming (located west of the intersection of Deming Drive and Walterscheid Boulevard). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present. (#4208)

ORDINANCE – 3rd READING – Vacating the eastern one-half of the 16-foot wide alley located west of House Avenue, south of Evans Avenue, adjacent to Lots 1, 2, 3, 12, 13 and 14 of Block 2, Pershing Heights Addition, Second Filing, City of Cheyenne, Laramie County, Wyoming. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting "yes" – all members of the governing body present. (#4209)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from Swan Ranch Rail Park Planned Unit Development to Light Industrial for a portion of Lots 11, 12, 13, 14 and 15, Block 2 of the Swan Ranch Rail Park Eleventh Filing Subdivision, Cheyenne, Wyoming (located north of Tundra Drive, south of W. Wallick Road and west of Clear Creek Parkway). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present. (#4210)

ORDINANCE – 2nd READING – Amending various sections of Chapter 8.40, Food and Food Service Establishments, Title 8, Health and Safety, of the code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Comment was made in support of the proposed changes. Motion carried. Voting "yes" – all members of the governing body present.

ORDINANCE – 1st READING – Amending Section 1.12.010, Findings of fact, and amending Section 1.12.020, Filing of plats and maps, of Chapter 1.12, Datum Plane, of Title 1, General Provisions, of the code of the city of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2017 budget of the City of Cheyenne according to the provisions of W.S. §§16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#5888)

[CA] RESOLUTION – Certifying compliance with W.S. §15-1-402 for the City-initiated annexation of a portion of the S½ of Section 35, and a portion of the SW¼ of Section 36, T14N, R67W, Laramie County, Wyoming (located between Old Happy Jack Road and Happy Jack Road, west of I-80). Motion (per Consent Agenda) carried. (#5889)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Swan Ranch Rail Park, Twelfth Filing, a plat of land being situated in portions of the NE¼ NE¼ of Section 28, and the NW¼, NW¼ of Section 27, T13N, R67W of the 6th Principal Meridian, Laramie County, Wyoming (located to the north of the intersection of Berwick Drive and Tundra Drive) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Swan Ranch Rail Park, Thirteenth Filing, a plat of land being situated in a portion of Section 22, Township 13 North, Range 67 West of the Sixth Principal Meridian, Laramie County, Wyoming (located to the west of and adjacent to Berwick Drive, south of W. Wallick Road) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Adopting the Converse Dell Range Intersection Traffic Safety Plan and the Converse Avenue 35% Design Plan – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Supporting the City of Cheyenne, Wyoming’s application for a Land and Water Conservation Fund Grant for dugout roof replacement and concrete and masonry block repair at the Cheyenne Junior League Complex – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Authorizing a one time payment to full-time and permanent part-time employees of the City of Cheyenne (excluding the Firefighters Union Local No. 279 and employees of the Cheyenne Board of Public Utilities) in recognition of their outstanding efforts – referred to Finance Committee. (Sponsor – Mr. Shanor)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the United States Secret Service for Colorado and Wyoming Financial Crimes Task Force. Motion (per Consent Agenda) carried. (#6750)

[CA] Grant Award Agreement between the City of Cheyenne, Cheyenne Police Department, and State of Wyoming, Office of Homeland Security, for the purchase of one trailer mounted mobile surveillance platform and allowable accessories. Motion (per Consent Agenda) carried. (#6751)

[CA] Employment Agreement between the City of Cheyenne, through the Cheyenne Police Department, and Jessica Fritz for crime victim assistance services. Motion (per Consent Agenda) carried (base annual salary amount of \$31,200.00 plus eligible benefits). (#6752)

[CA] Employment Agreement between the City of Cheyenne, through the Cheyenne Police Department, and Leslie Burch for crime victim assistance services. Motion (per Consent Agenda) carried (base annual salary amount of \$48,878.52 plus eligible benefits). (#6753)

[CA] Employment Agreement between the City of Cheyenne, through the Cheyenne Police Department, and Brenda Johnson for crime victim assistance services. Motion (per Consent Agenda) carried (base annual salary amount of \$35,859.12 plus eligible benefits). (#6754)

Professional Services Agreement between the City of Cheyenne and AVI to develop the Evers Blvd. Reconstruction design. Mr. Luna moved to approve in an amount not to exceed \$776,266.37, seconded by Mr Cook. Comment was made on the project's street and drainage improvements. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no". (#6755)

Memorandum of Understanding between the City of Cheyenne and the Downtown Development Authority to establish the responsibilities of how and processes by which the Fiscal Year 2017-2018 funds are to be used in the Cheyenne central business district. Item was withdrawn from the agenda pursuant to action taken during the Consent Agenda item.

Professional Services Agreement between the City of Cheyenne and Collins Engineers, Inc., for Christensen Road constructability review services. Donn Edmunds spoke in support of the original project's scope of work in conjunction with discussions with WYDOT, and in opposition to the current proposed scope of work. Mr. Edmunds discussed the differences between the initial and current proposals, and expressed concerns with traffic congestion; emergency response, and lack of adequate 6th penny sales tax funding. Mr. Luna reported there was no recommendation on the item from Finance Committee. Mr. Luna moved to approve in an amount not to exceed \$312,235.00, seconded by Mr. Case. Mr. Case moved to postpone to November 27, 2017, seconded by Mr. Roybal. It was noted postponement will allow for more information to be received on the project during a City Council work session to be held Friday, November 17th at noon, which is open to the public. Motion to postpone carried. Voting "yes" – all members of the governing body present.

[CA] Contract for Services between the City of Cheyenne, Office of Youth Alternatives, and the Laramie County Community Juvenile Services Joint Powers Board for the weekender community service program (funding through Joint Powers Board) – referred to Finance Committee.

[CA] Grant Agreement between the City of Cheyenne, Cheyenne Fire and Rescue Department, and State of Wyoming, Office of Homeland Security, for the purposes of administering Regional Emergency Response Team #7 (RERT #7) – referred to Finance Committee.

[CA] Amendment No. 2 to Contract No. 6162 between the City of Cheyenne, through the Information Technology Division, and CenturyLink Sales Solution, Inc. for modification to the City's Metro Ethernet Network servicing outlying offices. Motion (per Consent Agenda) carried. (#6162)

[CA] Contract Modification No. 8 to Contract No. 6219 between the City of Cheyenne, Community Recreation and Events Department, and RECCO Inc., d/b/a Five-R Company, for the Cheyenne Botanic Gardens Project, to increase the Guaranteed Maximum Price – referred to Finance Committee.

[CA] Amendment No. 6 to Contract No. 4563 between the City of Cheyenne, Public Works Department, and Wyoming Cattle Co., LLC, for grazing on the Belvoir Ranch (revenue to City) – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6654 between the City of Cheyenne, 1% Construction Division, and Simon Contractors, to extend the completion date for the 2017 City Overlay, Part 1 Project – referred to Finance Committee.

Consideration of Bid #E-7-18 for furnishing ice control product for the Public Works Department (2015-2018 1% Sales Tax). Mr. Luna moved to accept the bid from Desert Mountain, Riverton, WY, in an amount not to exceed \$125,370.00, seconded by Mr. Johnson. Comment followed on evaluating other types of ice control products which have less effect on concrete and vehicles. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Laybourn voting "no".

[CA] Consideration of Bid #E-8-18 for furnishing one in-stock fire apparatus for the Cheyenne Fire and Rescue Department. Motion (per Consent Agenda) carried (accepted bid submitted by Max Fire Apparatus, Castle Rock, CO, in an amount not to exceed \$478,000.00).

[CA] Consideration of Bid #S-3-18 for a contract between the City of Cheyenne, Community Recreation and Events Department, and Wasatch Railroad Contractors for the restoration of Big Boy 4004 Holiday Park Project (State Loan and Investment Board grant funds) – referred to Finance Committee.

Appointment of Alexis Arp, Maggie Black, McCoy Bush, Ashen Doty, Raegan Downham, Dylan Fertig, Julia Horst, Keiran Loughran, Emily Lucero, Nickolas Metheny, Kaylee Sanchez, Kenitra Shanks, Dominick Singleton and Garrett Vickery to the 2017-18 Mayor's Youth Council. Mr. Shanor moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointments).

Appointment of Jasper James Chen to the Cheyenne/Laramie County Economic Development Joint Powers Board. Mr. Roybal moved to approve, seconded by Mr. Shanor. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointment).

Under other business:

Mr. Johnson commented on upcoming employee retirements in the Street and Alley Division and potentially utilizing salary savings toward salary adjustments to other employees within the Division, and questioned the amount of property taxes the City pays for park properties. Ron Downey, City Treasurer, explained that if the land is owned by the City and used for a government purpose, which includes parks, it is not taxable. Mayor Orr noted there are some City-owned properties for which the City does pay property taxes, such as the Belvoir Ranch.

Mayor Orr called for a moment of silence in remembrance of colleague Rob Cleveland, Director of the City of Cheyenne/Laramie County Emergency Management Agency, who recently passed away, and noted funeral services will be held Saturday, November 18th at 2:00 p.m. in the Civic Center.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:35 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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